

23CHCV02278 23CHCV02278

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-08-03

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(2) PETITIONS TO APPROVE COMPROMISE OF PENDING ACTION ON
BEHALF OF MINORS

Petitions filed on June 17, 2026.

MOVING PARTY: Petitioner Jeffery Huffman, as guardian ad
litem for minor claimants Kinsley Huffman and Kyler Huffman

RESPONDING PARTY: None

NOTICE: Defective.

RELIEF REQUESTED: Approval of minors' compromise petitions
as to Kinsley Huffman and Kyler Huffman.

RULING: Denied without prejudice.

BACKGROUND

On August 1, 2023, Plaintiffs filed the Complaint against
Defendant Ric Garrison (Defendant), asserting claims arising from a motor
vehicle collision. The Court granted applications appointing Jeffrey Huffman as

guardian ad litem for the minor plaintiffs, including Kinsley Huffman and Kyler Huffman.

On January 8, 2026, Plaintiffs filed a Notice of Settlement of Entire Case.

On June 17, 2026, Petitioner filed a Petition for Approval of Compromise of Pending Action on behalf of Kinsley Huffman, together with proposed forms MC-351 and MC-355. The petition reflects a gross settlement of \$25,001.00, with \$4,010.00 in medical expenses, \$6,250.25 in attorney's fees, and \$2,982.91 in costs, leaving \$11,757.84 for deposit into a blocked account.

On the same date, Petitioner filed a Petition for Approval of Compromise of Pending Action on behalf of Kyler Huffman, together with proposed forms MC-351 and MC-355. The petition reflects a gross settlement of \$17,501.00, with \$2,700.00 in medical expenses, \$4,375.25 in attorney's fees, and \$3,013.97 in costs, leaving \$7,411.78 for deposit into a blocked account.

No proofs of service of the petitions were filed.

DISCUSSION

Notice

Neither petition is accompanied by a proof of service. The Court therefore cannot make the finding required by form MC-351 that notice was given as required by law.

Required Medical Reports

Item 8 of form MC-350 requires attachment of a doctor's report containing a diagnosis or prognosis and a report of the claimant's current condition. Both petitions state that the minors have recovered completely, but neither petition includes the required Attachment 8 report.

Attorney's Fees and Agreements

Each petition states that Petitioner and counsel have a written agreement for legal services. Item 17a requires that a copy of the agreement be attached as Attachment 17a. Neither petition includes the written

fee agreement.

Medical Expenses

Although the aggregate medical-expense calculations reconcile, the disclosures in item 12b require clarification. Kinsley's petition identifies \$110.00 as paid by a non-ERISA self-funded plan, while the stated \$254.00 reduction and \$740.00 reimbursement correspond to a separate \$994.00 MCA/High Desert charge shown in the attached schedule. Kyler's petition similarly identifies \$1,113.45 as paid by the plan, while the stated \$203.40 reduction and \$550.00 reimbursement correspond to a separate \$753.40 MCA/Sierra charge. The petitions should clarify MCA's role and correctly identify the amounts paid by, and reimbursable to, any plan or lienholder, if necessary.

Item 14

Neither petition checks item 14a or item 14b concerning reimbursement of expenses paid or incurred by Petitioner.

Item 17f

Both petitions state in item 17f that counsel expects to receive additional attorney's fees from the other plaintiffs "Upon Settlement." The corresponding attachments state that those plaintiffs "has paid" the fees. The renewed petitions must clarify whether those amounts have already been received or remain payable upon settlement.

Proposed Orders

The proposed forms MC-351 correctly calculate the deductions and net recoveries, and the intended distributions are apparent. However, item 8b is completed inconsistently. Item 8b concerns only the balance remaining for the minor after the fees and expenses authorized in item 8a, but the proposed orders use item 8b(2) to describe both the item 8a payments and the minor's net recovery. The proposed orders should be corrected so that item 8b addresses only each minor's net recovery and the blocked-account disposition is made consistently under item 8b(1), as referenced in item 9.

CONCLUSION

The petitions to approve compromise of pending action on behalf of Kinsley Huffman and Kyler Huffman are denied without prejudice.

The OSC re Dismissal (Settlement) is continued to September 21, 2026, at 8:30 a.m. in Department F-46 to permit the filing and hearing of renewed petitions.